

Court No. - 3

Case :- WRIT - C No. - 20410 of 2022

Petitioner :- Ashok Maurya

Respondent :- Chairman, Purvanchal Vidyut Vitran Corporation Ltd. And Another

Counsel for Petitioner :- Paras Nath Singh

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner.
2. This writ petition has been filed praying for the following reliefs :

"(i) issue a writ, order or direction in nature of certiorari quashing the impugned provisional Assessment Order dated 15.03.2022 passed by the respondent no. 2-Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Khalilabad (Sant Kabir Nagar) (Annexure- 3 to this writ petition) by which petitioner is directed to deposit a sum of Rs. 11,05,896/- within 15 days.

(ii) issue a writ, order or direction in nature of mandamus commanding the respondent no. 2-Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Khalilabad (Sant Kabir Nagar) to pass fresh assessment order after affording full opportunity of hearing to the petitioner in accordance with provisions of Section 126(3)(5) and (6) of Electricity Act, 2003 within the short stipulated period as may be fixed by this Hon'ble Court."

3. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

4. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 8.8.2022

A. V. Singh